

SENATE BILL NO. 111

INTRODUCED BY D. LOGE

A BILL FOR AN ACT ENTITLED: "AN ACT LIMITING THE USE OF GREEN LIGHTS ON PUBLIC HIGHWAYS TO SNOW REMOVAL EQUIPMENT OPERATED BY THE DEPARTMENT OF TRANSPORTATION OR ANOTHER GOVERNMENT ENTITY AND TO ON-SCENE INCIDENT COMMANDERS; AND AMENDING SECTION 61-9-226, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

(Refer to Introduced Bill)

Strike everything after the enacting clause and insert:

Section 1. Section 61-9-226, MCA, is amended to read:

"61-9-226. Special restrictions on lamps -- definition. (1) A lighted lamp or illuminating device upon a motor vehicle other than headlamps, spot lamps, auxiliary lamps, or flashing turn signals, emergency vehicle warning lamps, and school bus warning lamps that projects a beam of light of an intensity greater than 300 candlepower must be so directed that the high intensity portion of the beam may not strike the level of the roadway on which the vehicle stands at a distance of more than 75 feet from the vehicle.

(2) A person may not drive or move a vehicle or equipment upon a highway with:

(a) a lamp or device displaying a red light visible from in front of the center of the vehicle. This section does not apply to a vehicle upon which a red light visible from the front is expressly authorized or required by this code.

(b) green lights that are flashing, rotational, or continuous, except for vehicles that are authorized by this chapter to contain the lights, including:

(i) snow-removal equipment operated by the department of transportation or another government entity; and

(ii) a police or authorized emergency vehicle that is an on-scene incident command or control

(3) Flashing, blinking, sequential, rotating, or pulsating lights are prohibited except on vehicles that are authorized by this chapter to contain the lights or on a vehicle as a means for indicating a right or left turn or the presence of a vehicular traffic hazard requiring unusual care in approaching, overtaking, or passing.

9 (5) As used in this section "school bus" has the meaning provided in 20-10-101."

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